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Case Number: 24STCP03892 Hearing Date: August 20, 2026 Dept: 836

(1) MOTION TO QUASH RESPONDENT SANTA MAURA SPICE AND
GARLIC CO., INC.'S DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS
ISSUED TO BANK OF AMERICA, N.A.;

(2) MOTION TO QUASH RESPONDENT SANTA MAURA SPICE AND
GARLIC CO., INC.'S DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS
ISSUED TO FROST BANK

Date: 8/20/26

(1:30 PM)

Case: Moises E. Cruz v. Santa Maura

Spice and Garlic Co., Inc., et al. (24STCP03892)

TENTATIVE RULING:

Petitioner Moises E. Cruz's Motion to Quash Respondent Santa
Maura Spice and Garlic Co., Inc.'s Deposition Subpoena for Production of
Business Records Issues to Bank of America, N.A. is DENIED in Part and GRANTED
in Part. The Request for Sanctions in the Amount of \$5,925 against Santa Maura
Spice and Garlic Co., Inc. and Sheri Kanesaka, jointly and severally, is
DENIED.

Petitioner Moises E. Cruz's Motion to Quash Respondent Santa
Maura Spice and Garlic Co., Inc.'s Deposition Subpoena for Production of
Business Records Issues to Frost Bank. is DENIED in part and GRANTED in Part. The
Request for Sanctions in the Amount of \$5,925 against Santa Maura Spice and
Garlic Co., Inc. and Sheri Kanesaka, jointly and severally, is DENIED.

I. BACKGROUND

On December 2, 2024, petitioner Moises. E. Cruz filed a Verified Petition for Writ of Mandate to Compel Inspection and Copying of Books and Records of Santa Maura Spice and Garlic Co., Inc. against respondents Santa Maura Spice and Garlic Co., Inc. ("Santa Maura") and John B. Rusconi. As alleged, on September 1, 2022, a stock certificate for 60,000 shares of common stock for Santa Maura was issued to Cruz. (Pet. ¶ 10 & Ex. 5.) On the same day, a second stock certificate for 40,000 was issued to Rusconi.. (Pet. ¶ 11 & Ex. 6.) It is further alleged that both stock certificates were signed by Rusconi as Santa Maura's secretary, treasurer and president. (Pet. ¶ 12.) On September 26, 2024, Cruz, through counsel, requested to review and inspect Santa Maura's books and records pursuant to Corporations Code § 1601. (Pet. ¶ 17 & Ex. 10.) On October 8, 2024, respondents responded, through counsel, and disputed Cruz's claim of being a shareholder based on a prior deal between the parties. (Pet. ¶ 19 & Ex. 11.) On October 10, 2024, Cruz requested proof of any such purported arrangement. (Pet. ¶ 20 & Ex. 12.) Despite initial assurances that the documents would be produced, before initiating this action, Cruz did not receive any documents to prove the existence of this arrangement. (Pet. ¶ 21-24.)

On February 10, 2025, respondents filed a joint answer, wherein Rusconi admitted to having prepared the referenced stock certificates for 60,000 shares but contending they were void because Cruz did not agree to a purchase price, failed to pay a purchase price, and failed to return permanently to Los Angeles to become a manager. (Answer ¶¶ 10-13.)

Here, Cruz moves to quash deposition subpoenas issued by respondents for production of documents from custodians of records for Bank of America, N.A. and Frost Bank.

II. DISCUSSION

A. Legal Standard

CCP 1987.1 states: "When a subpoena requires the attendance of a witness or the production of [documents], the court, upon motion reasonably made by the party, the witness or any consumer described in Section

1985.3...may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders."

"The court may make any other order as may be appropriate to protect the parties, the witness, or the consumer from unreasonable or oppressive demands including unreasonable violations of a witness's or consumer's right of privacy." (Ibid.)

B. Merits

For the reasons that follow, the Court finds that an order modifying respondents' subpoenas Bank of America, N.A. and Frost Bank is appropriate.

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35-37.) Personal financial information comes within the zone of privacy protected by the California Constitution, Article 1, Section 1. (Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 655-656; Fortunato v. Superior Court (2003) 114 Cal.App.4th 475, 480-81; see also Schnabel v. Superior Court (1993) 5 Cal.4th 704, 712-713 [finding a right to privacy in confidential customer information in whatever form it takes, including tax returns, checks, statements, or other account information].) The state's privacy provision "extends to one's confidential financial affairs as well as to the details of one's personal life" (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 368.)

The California Supreme Court has explained that, generally:

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interest's disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.

A court must then balance these competing considerations." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 [citing Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35].) Our Supreme Court has

rejected cases holding that the party seeking protected information must always show a compelling need or interest. (Id. at 557.) Instead, the Court has recognized that “[o]nly obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest.” (Ibid.)

The more “sensitive” the information (e.g., personal financial information, customers’ lists, trade secrets, etc.), the greater the need for discovery must be shown. (Tien v. Superior Court (2006) 139 Cal.App.4th 528, 540.) Sensitive personal information may be ordered disclosed if it is shown to be “directly relevant” and “essential to a fair determination” of the action. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1430.)

Here, the pertinent subpoenas seek various records associated with petitioner’s personal accounts at Bank of America and Frost Bank from January 1, 1991 through the present. (Mtn. re: Bank of America; Ex. 2 at 3-4; Mtn. re: Frost Bank, Ex. 2 at 3-4.) In particular, the subpoenas seek the following records:

(1) All DOCUMENTS which REFER TO OR RELATE TO all bank accounts held by Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), or in' which Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]) has an interest in or is listed as a holder, from January 1, 1991 through the present, including but not limited to all: [¶] a. Loan statements and records [¶] b. Mortgage statements and records [¶] c. Signature cards [¶] d. Cashier's checks [¶] e. Withdrawal documents [¶] f. Correspondence [¶] g. Account opening documents.

(2) Complete monthly bank statements for any account held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(3) All DOCUMENTS identifying the addresses to which bank notices have been sent for any account held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(4) All DOCUMENTS identifying the signatories for any account held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(5) Copies of all cancelled checks for any account held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(6) All wire transfer requests, receipts, and/or instructions for any account held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(7) All COMMUNICATIONS RELATING TO the opening or closing of any bank accounts held by, owned, and/or in the name of, whether wholly or partially, Moises E. Cruz aka Moises Eduardo Cruz aka Moises Cruz aka Moises E Cruz Fonseca (SSN [REDACTED]), from January 1, 1991 through the present.

(Ibid.)

In opposition, respondents argue that the subpoenas seek relevant information because it would provide information as to whether: (1) “[petitioner] originally purchased shares of Santa Maura in 1995;” (2) “the parties adhered to the terms of the 2007 Buyout Agreement”; and (3) whether “[petitioner] purchased shares in 2022 to buy back an interest in the company.” (Opps. at 11-12.) The Court is only partly persuaded by these justifications. Respondents have provided proof of the Company Buyout Agreement, dated January 1, 2007 (Opps. Kanesaka Decl. ¶2 & Ex. 1.) The existence of such agreement implies that Cruz was a prior owner of Santa Maura. Thus, the need for petitioner’s personal financial records prior to date of such buyout agreement does not outweigh Cruz’s privacy interests. The Court further observes that proof of payments from petitioner evidencing his purchase of shares (or absence thereof) might equally be found in the possession of Santa Maura as the purported recipient of such payments..

Similarly, while the parties contest what occurred in connection with the 2007 Buyout Agreement, proof of payments pursuant to that agreement (or lack thereof) is equally likely to be found in respondents' records. Notably, respondents have failed to show that they have been unable to locate these documents within their own records.

Lastly, as to proof that Cruz purchased shares in 2022, the Court finds it reasonable for respondents to seek this information through the underlying subpoenas because respondents contest the claim that Cruz followed through with a buyback in 2022. Disclosure of financial records for that period of time is warranted, as they are "directly relevant" and "essential to a fair determination" of the action. (Alch, 165 Cal.App.4th at 1430.)

Accordingly, the motions to quash are GRANTED IN PART, but DENIED insofar as the subpoenas seek financial records for the limited time period September 1, 2022 through September 26, 2024, which reasonably captures the period in which Cruz may have repurchased the company shares.

C. Sanctions

In connection with each motion, Cruz requests that the Court impose monetary sanctions in the amount of \$5,925 against Santa Maura Spice and Garlic Co., Inc. and Sheri Kanesaka, jointly and severally, totaling \$11,850.

CCP § 1987.2(a) permits the award of monetary sanctions if a motion to quash is "opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." Because the Court acknowledges that the subpoenas seek some relevant records concerning Cruz's claim that he had repurchased shares to Santa Maura on or around September 1, 2022, the Court cannot find that respondents' opposition to the motions was entirely in bad faith or without substantial justification in certain respects. The Court thus finds that monetary sanction pursuant to CCP § 1987.2 are unwarranted.

III. CONCLUSION

Petitioner Moises E. Cruz's Motion to Quash Respondent Santa Maura Spice and Garlic Co., Inc.'s Deposition Subpoena for Production of Business Records Issues to Bank of America, N.A. is GRANTED IN PART and DENIED

IN PART. The subpoenas shall be limited to records from the time period September 1, 2022 through September 26, 2024, to capture a period in which where Cruz may have repurchased the company shares. The Request for Sanctions in the Amount of \$5,925 against Santa Maura Spice and Garlic Co., Inc. and Sheri Kanesaka, jointly and severally, is DENIED.

Petitioner Moises E. Cruz's Motion to Quash Respondent Santa Maura Spice and Garlic Co., Inc.'s Deposition Subpoena for Production of Business Records Issues to Frost Bank is GRANTED IN PART and DENIED IN PART. The subpoenas shall be limited to records from the time period September 1, 2022 through September 26, 2024, to capture a period in which where Cruz may have repurchased the company shares. The Request for Sanctions in the Amount of \$5,925 against Santa Maura Spice and Garlic Co., Inc. and Sheri Kanesaka, jointly and severally, is DENIED.